



A COMMUNITY OF CHOICE

OFFICE OF THE CITY ENGINEER

2101 O'Neil Avenue Room 206

Cheyenne, Wyoming 82001

Phone (307)637-6268 Fax (307)637-6256

MEMORANDUM

DATE: October 18, 2023
TO: Honorable Mayor Patrick J. Collins
Members of the City Council

FROM: Thomas D. Cobb, PE, City Engineer

SUBJECT: **Drainage Easement granted by WMC, Cheyenne, LLC to the City of Cheyenne, a Wyoming municipal corporation**

Please find the attached the proposed drainage easement for your acceptance.

Reason for Easement:

The primary reason for the Easement is to ensure on behalf of the public that perpetual maintenance is provided in a private drainage facility to remain in "Good Working Order."

"Good working order" is defined as the drainage system operating as designed and constructed in accordance with the as-built construction drawings on file with the City including, but not limited to, ensuring that the structures and Easement Area land surface are free of debris, impoundments, and/or alterations to the drainage flow.

Cost and Funding:

No impacts are anticipated at this time.

DRAINAGE EASEMENT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS that, WMC Cheyenne, LLC (“Grantor”), whose address is 4245 East 46th Avenue Denver CO, 80216, in consideration of the sum of Ten Dollars (\$10.00) and other good and valuable consideration, receipt and sufficiency of which is hereby acknowledged by and between the parties, does hereby grant to the City of Cheyenne, a Wyoming municipal corporation (“City”), whose address is 2101 O’Neil Avenue, Cheyenne, Wyoming 82001, and to its successors and assigns, a non-exclusive drainage easement, legally described on **Exhibit A**, attached hereto and incorporated herein.

RECITALS

WHEREAS, the City desires to obtain a drainage easement for the purposes of providing, ensuring the maintenance of a storm water conveyance/ drainage facility on and through the property more particularly described and depicted in **Exhibit A** (“Easement Area”);

WHEREAS, Grantor acknowledges that they have the obligation to maintain the drainage facilities within the easement area in accordance with this agreement;

WHEREAS, Grantor is willing to grant such easement to Grantee on and subject to the terms and conditions of this agreement; and

WHEREAS, Grantor states it is the lawful owner of the real property described herein, that it has good and lawful right and authority to grant, sell, and convey said property, or any part thereof, and that it warrants the title of said property.

NOW, THEREFORE, in consideration of the foregoing premises and the mutual agreement of the parties hereto, the parties hereby agree as follows:

1. **Drainage Easement.** Grantor executes this easement in favor of City, its successors and assigns, the right and privilege to ensure on behalf of the public that the facility remains in Good Working Order. Such grant includes all rights and privileges necessary or convenient for the full enjoyment and use thereof for the above-mentioned purposes including, but not limited to, the right of ingress and egress over Grantor’s adjoining property in order to exercise the explicit right to remedy any drainage issues on the property.

2. **Modification.** The Grantor shall be prohibited from altering or placing anything in the Easement Area which shall obstruct or impede the flow of storm water or surface drainage from the Grantor’s property. Grantor agrees not to build or to convey to others permission to build any structures or improvements on, over, across, in, through, or under the above-described Easement Area, or to develop or allow the development of the Easement Area in any manner which obstructs or interferes with the function or capacity of the drainage facilities. However, if approved in writing by the City, the Grantor may construct and/or install surface improvements to its property, including paved driveways, parking and/or walkways, landscaping, utilities and/or similar improvements, which improvements do not then or later interfere with the aforementioned purposes of the Easement Area.

3. **Maintenance.** Grantor shall maintain the drainage facilities contained within the Easement Area in good working order. "Good working order" is defined as the drainage system operating as designed and constructed in accordance with the as-built construction drawings on file with the City including, but not limited to, ensuring that the structures and Easement Area land surface are free of debris, impoundments, and/or alterations to the drainage flow.

4. **Shared Use.** The Grantor reserves the right to make any use of the Easement Area which is not inconsistent with the rights herein conveyed to the City, and which does not interfere with the aforementioned purposes of the Easement Area.

It is understood and agreed that the enforcement and conditions of this agreement, and all rights contained herein, shall be strictly reserved to the Grantor and the City. Nothing contained in this agreement shall give any claim or right whatsoever by any third person or entity. It is the express intention of the Grantor and the City that any such person or entity, other than the Grantor or the City, that receives a service or benefit under this agreement shall be deemed an incidental third-party beneficiary only.

This grant of easement is binding upon the heirs, executors, administrators, successors, and assigns of the parties hereto.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals this _____ day of _____, 2023.

GRANTOR:

By: _____
Andrew A. McGill, Principal, WMC Cheyenne, LLC

Its: _____

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Subscribed and sworn to before me this _____ day of _____, 2023, by
Andrew A. McGill.

Witness my hand and official seal.

Notary Public

My commission expires: _____

CITY OF CHEYENNE:

By: _____
Patrick J. Collins, Mayor

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

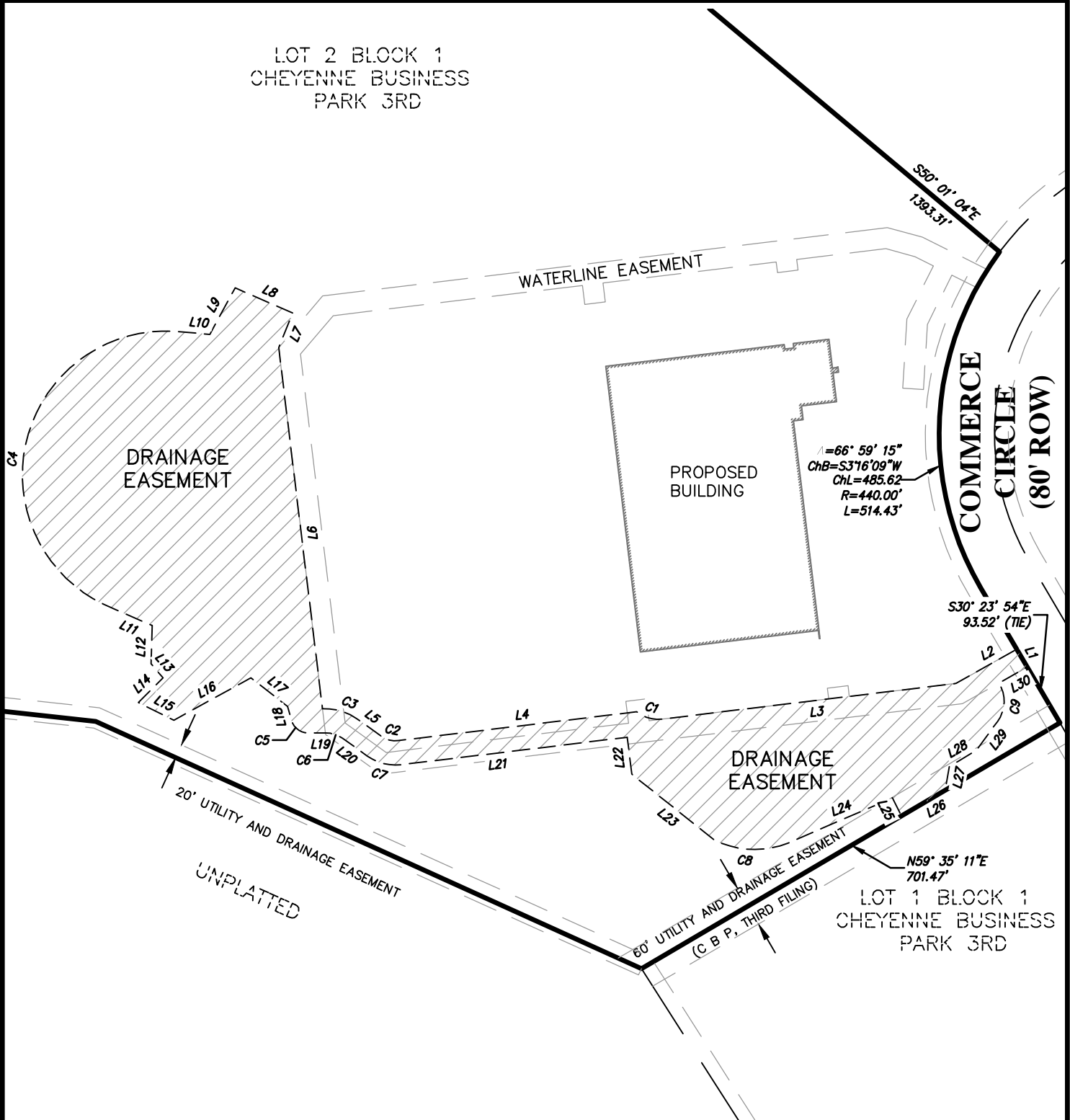
Subscribed and sworn to before me this _____ day of _____, 2023, by
Patrick J. Collins, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

Notary Public

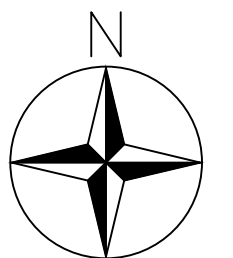
My commission expires: _____

LOT 2 BLOCK 1
CHEYENNE BUSINESS
PARK 3RD



**SEE PAGE 3 FOR
EASEMENT DESCRIPTIONS**

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.



Scale: 1"=200'

22429 L2 BLK1 CHEY BUS PARK 3RD ESMT DRAINAGE.DWG

PAGE 1 of 3

REVISED: 3/16/2023

**DRAINAGE EASEMENT
EXHIBIT
FOR
LOT 2, BLOCK 1,
CHEYENNE BUSINESS PARK 3RD,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.**

Date prepared: 3.14.23



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
256 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteelSurvey.com • info@SteelSurvey.com

LINE TABLE		
Line #	Bearing	Length
L1	N30° 23' 54"W	30.00'
L2	S60° 35' 11"W	100.92'
L3	S83° 05' 11"W	427.25'
L4	S83° 06' 13"W	347.10'
L5	N54° 16' 57"W	44.36'
L6	N6° 54' 49"W	525.68'
L7	N21° 58' 27"E	53.80'
L8	N66° 19' 48"W	90.62'
L9	S28° 33' 33"W	76.43'
L10	N85° 07' 34"W	54.19'
L11	S66° 24' 04"E	78.19'
L12	S1° 37' 26"W	55.42'
L13	S40° 44' 21"E	26.66'
L14	S45° 00' 00"W	50.47'
L15	S63° 17' 27"E	57.21'

LINE TABLE		
Line #	Bearing	Length
L16	N61° 11' 20"E	127.19'
L17	S52° 06' 00"E	67.30'
L18	S15° 40' 31"E	20.76'
L19	N90° 00' 00"E	25.44'
L20	S54° 16' 57"E	44.36'
L21	N83° 05' 11"E	329.04'
L22	S6° 54' 49"E	53.63'
L23	S51° 27' 46"E	152.53'
L24	N66° 37' 11"E	164.70'
L25	S26° 38' 18"E	29.20'
L26	N59° 35' 11"E	73.00'
L27	N9° 51' 14"E	34.90'
L28	N59° 07' 48"E	45.98'
L29	N36° 09' 37"E	51.34'
L30	N60° 35' 11"E	46.99'

CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	45° 24' 18"	50.00'	N74° 12' 40"W	38.59'	39.62'
C2	42° 37' 52"	35.00'	N75° 35' 53"W	25.45'	26.04'
C3	36° 36' 03"	81.06'	N74° 10' 35"W	50.90'	51.78'
C4	156° 19' 05"	207.82'	S14° 23' 35"W	406.79'	566.99'
C5	74° 19' 29"	25.00'	S52° 50' 16"E	30.20'	32.43'
C6	34° 05' 07"	42.42'	S72° 56' 04"E	24.86'	25.23'
C7	42° 37' 52"	70.00'	S75° 35' 53"E	50.89'	52.08'
C8	48° 25' 30"	129.83'	S87° 29' 37"E	106.49'	109.73'
C9	68° 04' 46"	49.74'	N2° 08' 04"E	55.68'	59.10'

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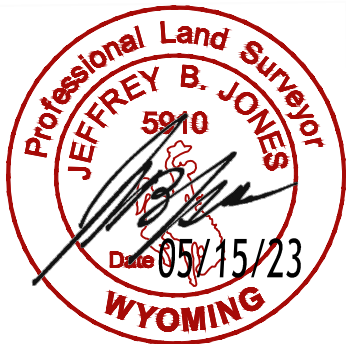
EASEMENT DESCRIPTION

An easement for drainage purposes, lying in a portion of Lot 2, Block 1, Cheyenne Business Park 3rd Filing Laramie County, Wyoming.

Beginning at a point on the Easterly line of said Lot 2, Block 1, from which the Southeast Corner of said Lot 2, on Commerce Drive, bears S30°23'54"E, a distance of 93.52 feet; thence N30°23'54"W along the Easterly line of said Lot 2, a distance of 30.00 feet; thence S60°35'11"W, a distance of 100.92 feet; thence S83°05'11"W, a distance of 427.25 feet; thence 39.62 feet on a curve to the right, said curve having a Delta of 45°24'18", a Radius of 50.00 feet, and whose Chord Bears N74°12'40"W, a distance of 38.59 feet; thence S83°06'13"W, a distance of 347.10 feet; thence 26.04 feet on a curve to the right, said curve having a Delta of 42°37'52", a Radius of 35.00 feet; and whose Cord bears N75°35'53"W, a distance of 25.45 feet; thence N54°16'57"W, a distance of 44.36 feet; thence 51.78 feet on a curve to the left, said curve having a Delta of 36°36'03", a Radius of 81.06 feet, and whose Chord bears N74°10'35"W, a distance of 50.90 feet; thence N6°54'49"W, a distance of 525.68 feet; thence N21°58'27"E, a distance of 53.80 feet; thence N66°19'48"W, a distance of 90.62 feet; thence S28°33'33"W, a distance of 76.43 feet; thence N85°07'34"W, a distance of 54.19 feet; thence 566.99 feet on a curve to the left, said curve having a Delta of 156°19'05", having a Radius of 207.82 feet, and whose Chord bears S14°23'35"W, a distance of 406.79 feet; thence S66°24'04"E, a distance of 78.19 feet; thence S1°37'26"W, a distance of 55.42 feet; thence S40°44'21"E, a distance of 26.66 feet; thence S45°00'00"W, a distance of 50.47 feet; thence S63°17'27"E, a distance of 57.21 feet; thence N61°11'20"E, a distance of 127.19 feet; thence S52°06'00"E, a distance of 67.30 feet; thence S15°40'31"E, a distance of 20.76 feet; thence 32.43 feet on a curve to the left, said curve having a Delta of 74°19'29", a Radius of 25.00 feet, and whose Chord bears S52°50'16"E, a distance of 30.20 feet; thence N90°00'00"E, a distance of 25.44 feet; thence 25.23 feet on a curve to the right, said curve having a Delta of 34°05'07", a Radius of 42.42 feet, and whose Chord bears S72°56'04"E, a distance of 24.86 feet; thence S54°16'57"E, a distance of 44.36 feet; thence 52.08 feet on a curve to the left, said curve having a Delta of 42°37'52", a Radius of 70.00 feet, and whose Chord bears S75°35'53"E, a distance of 50.89 feet; thence N83°05'11"E, a distance of 329.04 feet; thence S6°54'49"E, a distance of 53.63 feet; thence S51°27'46"E, a distance of 152.53 feet; thence 109.73 feet on a curve to the left, said curve having a Delta of 48°25'30", a Radius of 129.83 feet, and whose Chord bears S87°29'37"E, a distance of 106.49 feet; thence N66°37'11"E, a distance of 164.70 feet; thence S26°38'18"E, a distance of 29.20 feet to a point on the South line of Lot 2; thence N59°35'11"E, along said South line, a distance of 73.00 feet; thence N9°51'14"E, a distance of 34.90 feet; thence N59°07'48"E, a distance of 45.98 feet; thence N36°09'37"E, a distance of 51.34 feet; thence 59.10 feet on a curve to the left, said curve having a Delta of 68°04'46", a Radius of 49.74 feet; and whose Chord bears N2°08'04"E, a distance of 55.68 feet; thence N60°35'11"E, a distance of 46.99 feet to the Point of Beginning.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



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